(a) Constitutional Matters In the constitutional cases, an appeal can be made to the Supreme Court against the judgement of a high court if the high court certifies that the case involves a substantial question of law that requires the interpretation of the Constitution. Based on the certificate, the party in the case can appeal to the Supreme Court on the ground that the question has been wrongly decided.

(b) Civil Matters In civil cases, an appeal lies to the Supreme Court from any judgement of a high court if the high court certifies—

(i) that the case involves a substantial question of law of general importance; and

(ii) that the question needs to be decided by the Supreme Court.

Originally, only those civil cases that involved a sum of not less than ₹20,000 could be appealed before the Supreme Court. But this monetary limit was removed by the 30th Constitutional Amendment Act of 1972.

(c) Criminal Matters The Supreme Court hears appeals against the judgement in a criminal proceeding of a high court if the high court—

(i) has on appeal reversed an order of acquittal of an accused person and sentenced him/her to death; or

(ii) has taken before itself any case from any subordinate court and convicted the accused person and sentenced him/her to death; or

(iii) certifies that the case is a fit one for appeal to the Supreme Court.

In the first two cases, an appeal lies to the Supreme Court as a matter of right (ie, without any certificate of the high court). But if the high court has reversed the order of conviction and has ordered the acquittal of the accused, there is no right to appeal to the Supreme Court.

In 1970, the Parliament had enlarged the Criminal Appellate Jurisdiction of the Supreme Court. Accordingly, an appeal lies to the Supreme Court from the judgement of a high court if the high court:

(i) has on appeal, reversed an order of acquittal of an accused person and sentenced him/her to imprisonment for life or for ten years; or

(ii) has taken before itself any case from any subordinate court and convicted the accused person and sentenced him/her to imprisonment for life or for ten years.

(d) Appeal by Special Leave The Supreme Court is authorised to grant in its discretion special leave to appeal from any judgement in any matter passed by any court or tribunal in the country (except military tribunal and court martial). This provision contains the four aspects as under:

(i) It is a discretionary power and hence, cannot be claimed as a matter of right.

(ii) It can be granted in any judgement whether final or interlocutory.

(iii) It may be related to any matter—constitutional, civil, criminal, income-tax, labour, revenue, advocates, etc.

(iv) It can be granted against any court or tribunal and not necessarily against a high court (of course, except a military court).